

Court No. - 39

Case :- WRIT - C No. - 21732 of 2020

Petitioner :- Sunder Shyam

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anand Shanker Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

When the case is taken up in the revised list, none appears on behalf of the petitioner to address the Court.

Let the case be listed in the week commencing 25.1.2021 in the additional cause list.

Order Date :- 7.1.2021

Ishrat

Court No. - 39

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Petitioner :- Sunder Shyam

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anand Shanker Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Heard learned counsel for the parties and perused the record.

The petitioner herein seeks to challenge the recovery certificate dated 31.08.2019 issued by the respondent no.2 namely Tehsildar, Tehsil- Kairana, Shamli which appears to have been issued pursuant to a demand raised by the respondent no.3.

The contention of the petitioner is that the electricity connection of the tube-well has been disconnected much earlier and the demand raised by the respondent no.3 is illegal.

Sri Chandan Agarwal, learned Advocate has put in appearance on behalf of the respondent no.3. He, however, submits that the petitioner's grievance can be addressed by the Executive Engineer i.e. respondent no.3 under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In view thereof, the petitioner is directed to approach the respondent no.3 namely the Executive Engineer, Kairana, Paschimanchal Vidyut Vitran Nigam Ltd., Shamli by moving an a proper application raising all his grievances within a period of three weeks along with copy of this order. Subject to deposit of Rs.15,000/- by the petitioner at the time of moving of the application before the respondent no.3, he shall consider the same, in accordance with law. The decision shall be taken preferably within a period of six weeks from the date of receipt of the application.

The accounts towards electricity bills of the petitioner shall be settled by the respondent no.3 by providing him adequate time to make the deposits of the outstanding dues towards electricity consumption, if any.

For a period of two months from today or till a decision is taken by the respondent no.3, whichever is earlier, the recovery certificate dated 31.08.2019 issued by the respondent no.2 shall not be pursued against the petitioner.

In view of the above, the writ petition is ***disposed of***.

Order Date :- 23.2.2021/P Kesari